

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

13. MARIA VARGAS-COOK V. REILLY COOK

PFL20180521

On January 30, 2026, Respondent filed a Request for Order (RFO) seeking modification of permanent spousal support. Respondent did not file an Income and Expense Declaration and there is no Proof of Service for the RFO. This matter is dropped from calendar.

TENTATIVE RULING #13: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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8:30 a.m./1:30 p.m.

14. MARK BARRY V. JENNIFER BARRY

25FL0627

On March 18, 2026, Petitioner filed a Request for Order (RFO) seeking modification of support orders, and an order for the sale of the marital residence. He filed his Income and Expense Declaration concurrently therewith. Petitioner concurrently filed an Order Shortening Time (OST) which was granted. All required documents were served on March 23rd.

Respondent filed and served her Responsive Declaration to Request for Order and Income and Expense Declaration on March 27th; however, Respondent did not use the FL-320, which is a mandatory use form. Therefore, the court cannot consider the Responsive Declaration.

Petitioner asks the court to reduce child and spousal support or temporarily set them to zero dollars, due to his current inability to work. Petitioner is also requesting an order for the marital residence located on Azalea Circle in Pollock Pines to be listed for sale. Petitioner asserts the home is in danger of entering foreclosure due to his inability to pay the mortgage.

The court finds Petitioner is currently unable to work, and as of March 16, 2026, is not earning income. Petitioner has applied for, but is not yet receiving, disability pay. As such, the court temporarily sets guideline child support at \$0 effective April 15, 2026. Likewise, the court temporarily sets temporary guideline spousal support at \$0 effective April 15, 2026. The court is reserving jurisdiction to retroactively modify support to April 15, 2026. The court sets a review hearing for July 9, 2026 at 8:30 AM to review child and spousal support.

Regarding the sale of the marital residence, it is a longstanding tenant of the law that the court shall divide the community estate of the parties equally. Cal. Fam. Code 2550. Inherent in the court's authority to ensure that community assets are divided equally, the court holds broad discretion to "[a]t any time during the proceeding...order the liquidation of community or quasi-community assets so as to avoid unreasonable market or investment risks..." Cal. Fam. Code § 2108. Here, the residence does appear to be in present danger of foreclosure or destruction. Thus, the court orders the sale of the home to preserve the community interest. Petitioner is ordered to provide the names of three potential real estate agents to Respondent on or before April 23, 2026. Respondent is ordered to select one of the three by no later than April 30, 2026. The home is to be listed for sale by no later than May 7, 2026.